

Cause Number: \_\_\_\_\_

In the Matter of:

In the \_\_\_\_\_ District Court

Travis County, Texas

\_\_\_\_\_  
*Print the minor's name - first, middle, last*

A Minor

## Agreed Petition to Change the Sex/Gender Identifier of a Minor

### 1. Discovery Level

The discovery level in this case, if needed, is Level 2.

### 2. Petitioner and Co-Petitioner (the Minor's Parents or Conservators)

The Petitioner and Co-Petitioner are the parents or conservators of the minor listed in section 4.

(A) The **Petitioner** is: \_\_\_\_\_  
*First Middle Last*

The Petitioner is the minor's: ☐ Parent ☐ Non-parent Conservator

The last three numbers of Petitioner's driver's license number are: \_\_\_\_\_.

Petitioner's driver's license was issued in (state) \_\_\_\_\_.

**Or** ☐ Petitioner does not have a driver's license.

The last three numbers of my social security number are: \_\_\_\_\_.

**Or** ☐ Petitioner does not have a social security number.

There ☐ is ☐ is NOT a Co-Petitioner. *[If there is a Co-Petitioner complete (B) below.]*

(B) The **Co-Petitioner** is: \_\_\_\_\_  
*First Middle Last*

The Co-Petitioner is the minor's: ☐ Parent ☐ Non-parent Conservator

The last three numbers of Co-Petitioner's driver's license number are: \_\_\_\_\_.

Co-Petitioner's driver's license was issued in (state) \_\_\_\_\_.

**Or** ☐ Co-Petitioner does not have a driver's license.

The last three numbers of social security number are: \_\_\_\_\_.

**Or** ☐ Co-Petitioner does not have a social security number.

### 3. Respondent – Other Adult with Legal Relationship to Minor *[Check (A) or (B) below.]*

(A) ☐ There is no respondent. No other person has a legal relationship with the minor.

(B) ☐ The Respondent's name is: \_\_\_\_\_  
*Print the Respondent's full name.*

The Respondent is the minor's (Check one.)

☐ Nonparent Conservator or Guardian

☐ Second Parent *(Only if the Petitioner or Co-Petitioner is not the minor's parent.)*

(Check one.)

- ☐ I think the Respondent will sign a Waiver of Service (or Answer).
- ☐ I cannot find Respondent. I ask that the Respondent be served by publication. I understand I must file an *Affidavit for Citation by Publication* and hire a lawyer to serve as attorney ad litem for Respondent.

#### 4. Minor's Information

The minor's information is as follows:

(A) Minor's name: \_\_\_\_\_  
First Middle Last

(B) Home Address: \_\_\_\_\_ County: \_\_\_\_\_

(C) Social Security #: \_\_\_\_\_ - \_\_\_\_\_ - \_\_\_\_\_ or ☐ The minor does not have a Social Security #.

(D) Gender/Sex: (Check one as shown on current birth certificate.) ☐ Male ☐ Female

(E) Birth date: \_\_\_\_\_  
Month / Day / Year

(F) Place of birth: \_\_\_\_\_  
City State Country

(G) Consent by Minor (Check one.)

- ☐ Minor is younger than 10 years old. Consent is not required.
- ☐ Minor is 10 years old or older and has consented in writing to this sex/gender identity change.

(H) Sex Offender Registration (Check one.)

- ☐ The minor **is not** required to register as a sex offender.
- ☐ The minor **is** required to register as a sex offender. Proof that local law enforcement has been notified of the proposed sex/gender identifier change is attached to this Petition. (See below.)

(I) Are there any court orders about the minor already in place? (Check one.)

- ☐ There are no court orders regarding the minor.
- ☐ A court made orders involving the minor in the following case(s): (List all cases in which a court made orders about the minor. Make sure to attached copies of the orders to this petition.)

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
County State

Case type: \_\_\_\_\_  
Print the case type (custody, support, divorce, paternity, etc.)

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
County State

Case type: \_\_\_\_\_  
Print the case type (custody, support, divorce, paternity, etc.)

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
County State

Case type: \_\_\_\_\_  
Print the case type (custody, support, divorce, paternity, etc.)

## 5. Sex/Gender Identifier Change Request

The Petitioner(s) believe the requested sex/gender identifier change is in the minor's best interest.

(A) Petitioner(s) ask that the minor's gender and sex identifier be changed: (select one)

☐ from Male to Female ☐ from Female to Male.

Petitioner and Co-Petitioner want to change the minor's sex/gender identifier because:

The minor's birth certificate lists the minor as ☐ male ☐ female. The minor's true sex and gender, as reflected in the minor's physician's/therapist's letters attached, is ☐ male ☐ female.

In all aspects of the minor's life, the minor presents as ☐ male ☐ female. The minor's birth certificate and other identifying information should conform with the minor's true gender/sex. If this conformation does not occur, the minor will suffer significant damage including problems with school, problems with travel, problems obtaining insurance, employment, housing, credit, and problems with producing correct and consistent identification.

**And/Or** (if other reason, print below)

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(B) Petitioner(s) ask the Court to enter an order for schools, universities, agencies and departments within this court's jurisdiction to correct and amend the gender and sex identifiers in all licenses, databases, certificates, or other official documents under the agencies control and issuance, whether electronic or paper. This includes, but is not limited to, the Texas Department of Public Safety.

(C) [If the minor was born in Texas, complete (C1). If the minor was born in a different state, complete (C2).]

**(C1)** Petitioner(s) ask that upon application to the Vital Statistics Unit the minor's Texas birth certificate shall be corrected pursuant to Texas Health and Safety Code 192.011 to reflect the minor's sex/gender as: ☐ Male ☐ Female.

**(C2)** Petitioner(s) ask that the Court find that the minor was born in the state of \_\_\_\_\_. Petitioner(s) ask that the Court authorize the appropriate officials in charge of correcting birth records in the state of \_\_\_\_\_ to correct the birth record.

## 6. Sensitive Information

This filing contains sensitive information. Petitioner(s) ask that the Clerk maintain this file as a restricted file.

## 7. Request for Judgment

Petitioner(s) ask the Court to order the minor's gender/sex identifier changed as requested above. Petitioner(s) ask for general relief.

Respectfully submitted,



\_\_\_\_\_  
Petitioner's Signature



\_\_\_\_\_  
Co-Petitioner's Signature

**Note:** Each Petitioner must also fill out and sign a declaration under penalty of perjury.

## 8. Petitioner's Declaration Under Penalty of Perjury

My name is:\_\_\_\_\_. My date of birth is\_\_\_\_\_.

My address is: \_\_\_\_\_.

My email address is\_\_\_\_\_. My phone number is:\_\_\_\_\_.

**I declare under penalty of perjury that all information in this Petition to Change the Sex/Gender Identifier of a Minor is true and correct.**

Completed and formally signed on \_\_\_\_\_ in \_\_\_\_\_ County, \_\_\_\_\_.

*Month / Day / Year*

*County*

*State*

\_\_\_\_\_  
**Petitioner's Signature**

## 9. Co-Petitioner's Declaration Under Penalty of Perjury

My name is:\_\_\_\_\_. My date of birth is\_\_\_\_\_.

My address is: \_\_\_\_\_.

My email address is\_\_\_\_\_. My phone number is:\_\_\_\_\_.

**I declare under penalty of perjury that all information in this Petition to Change the Sex/Gender Identifier of a Minor is true and correct.**

Completed and formally signed on \_\_\_\_\_ in \_\_\_\_\_ County, \_\_\_\_\_.

*Month / Day / Year*

*County*

*State*

\_\_\_\_\_  
**Co-Petitioner's Signature**

**10. You MUST attach these documents to your Petition:**

- ☐ Minor's written consent if the minor is ten years old or older.
- ☐ A letter from the minor's doctor and/or counselor/therapist stating the minor's diagnosis and that the minor has received or is receiving age-appropriate care or treatment in support of the minor's transition. Write "**Exhibit A**" at the top.
- ☐ A copy of the minor's birth certificate. Write "**Exhibit B**" at the top.
- ☐ Any court orders affecting the minor issued by a court of continuing jurisdiction. (For example, minor support, divorce, custody, visitation, or any order affecting the parent-minor relationship.) Write "**Exhibit C**" at the top.
- ☐ If the minor is required to register as a sex offender, attach proof that appropriate local law enforcement authority was notified of the proposed sex/gender identifier change. Write "**Exhibit D**" at the top.

Cause Number: \_\_\_\_\_

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In the \_\_\_\_\_ District Court

Travis County, Texas

\_\_\_\_\_  
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A Minor

## Final Order to Change the Sex/Gender Identifier of a Minor

A hearing took place on \_\_\_\_\_.  
*Date*

### 1. Appearances

(A) The **Petitioner's** name is: \_\_\_\_\_  
*First Middle Last*

The Petitioner is the minor's: ☐ Parent ☐ Non-parent Conservator

The Petitioner was present, representing him/herself, and has agreed to the terms of this Order.

(B) There ☐ is ☐ is NOT a Co-Petitioner. *[If there is a Co-Petitioner complete (B) below.]*

The **Co-Petitioner's** name is: \_\_\_\_\_  
*First Middle Last*

The Co-Petitioner is the minor's: ☐ Parent ☐ Non-parent Conservator

*(Check one.)*

☐ The Co-Petitioner was **present** and has signed below agreeing to this Order.

☐ The Co-Petitioner was **not present** but has signed below agreeing to this Order.

(C) **Respondent** – Other Adult with Legal Relationship to Minor *[Check (C1) or (C2) below.]*

(C1) ☐ There is no respondent. No other person has a legal relationship with the minor.

(C2) ☐ Another adult has legal relationship with the minor. The Respondent's name is:

\_\_\_\_\_  
*First Middle Last*

The Respondent is the: ☐ Nonparent Conservator or Guardian ☐ Second Parent

*(Check one box.)*

☐ The Respondent **was present**, representing him/herself, and announced ready for trial.

☐ The Respondent **was present**, representing him/herself, and agreed to the terms of this Order.

☐ The Respondent was **not present** but filed an Answer or Waiver of Service and has signed on page 3 agreeing to the terms of this Order.

☐ The Respondent **was not present** but was served and has defaulted. The Petitioner(s) have filed a Certificate of Last Known Address and a Military Status Affidavit.

## 2. Jurisdiction

The Court received evidence and finds that it has jurisdiction over this case and the parties, that the notice requirements have been met, and that the Petition meets all legal requirements.

## 3. Record

A court reporter: *(Check one.)*

- ☐ recorded today's hearing.  
☐ did not record today's hearing because the parties and judge agreed not to make a record.

## 4. Findings

The Court makes the following findings about the minor.

(A) Minor's name: \_\_\_\_\_  
*First Middle Last*

(B) Home Address: \_\_\_\_\_ County: \_\_\_\_\_

(C) Social Security #: \_\_\_\_\_ - \_\_\_\_\_ - \_\_\_\_\_ **or** ☐ The minor does not have a Social Security #.

(D) Birth date: \_\_\_\_\_  
*Month / Day / Year*

(E) Place of birth: \_\_\_\_\_  
*City State Country*

(F) Consent by Minor *(Check one.)*

- ☐ The minor is younger than 10 years old. Consent is not required.  
☐ The minor is 10 years old or older and has consented in writing to this sex/gender identifier change.

(G) Sex Offender Registration *(Check one.)*

- ☐ The minor **is not** required to register as a sex offender.  
☐ The minor **is** required to register as a sex offender. Proof local law enforcement was notified of the proposed sex/gender identifier change is attached.

(H) Court of Continuing Exclusive Jurisdiction *(Check one.)*

- ☐ There are no court orders regarding the minor.  
☐ A court has made orders involving the minor in the following case(s):

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
*County State*  
Case type: \_\_\_\_\_  
*Print the case type (custody, support, divorce, paternity, etc.)*

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
*County State*  
Case type: \_\_\_\_\_  
*Print the case type (custody, support, divorce, paternity, etc.)*

Case/Cause Number \_\_\_\_\_ in \_\_\_\_\_  
*County State*  
Case type: \_\_\_\_\_  
*Print the case type (custody, support, divorce, paternity, etc.)*

(I) The requested sex/gender identifier change is in the best interest of the minor and the public.

## 5. Orders

The Court **orders** the minor's gender and sex identifier be changed:

(Select one) ☐ from Male to Female **OR** ☐ from Female to Male.

This order shall act as the official order for schools, universities, agencies, and departments within this court's jurisdiction to correct and amend the gender and sex identifiers on any and all licenses, certificates, or other official documents under the agency's control and issuance, whether electronic or paper. This includes, but is not limited to, the Texas Department of Public Safety.

☐ (If the minor was born in Texas) The Court **orders** that upon application to the Vital Statistics Unit the minor's Texas birth certificate shall be corrected pursuant to Texas Health and Safety Code 192.011 to reflect minor's sex/gender as: ☐ Male ☐ Female.

☐ (If the minor was born in a state other than Texas) The Court finds that the minor was born in the state of \_\_\_\_\_. The Court authorizes the appropriate officials in charge of correcting birth records in the state of \_\_\_\_\_ to correct the minor's birth record in accordance with the findings in this order.

## 6. Other Orders

Documents within the file shall not be released except upon court order or upon request of the attorneys of record or the party to the case. The Clerk shall maintain this file as a restricted file.

The Court has the right to make other orders, if needed, to clarify or enforce this order. Any orders requested that do not appear above are denied.

SIGNED ON: \_\_\_\_\_

*Date Signed*



*Judge's Signature*

**APPROVED AS TO FORM AND SUBSTANCE:**



**Petitioner's signature**

Phone #: \_\_\_\_\_

Mailing Address: \_\_\_\_\_

Email address: \_\_\_\_\_ Fax # (if available): \_\_\_\_\_



**Co-Petitioner's signature**

Phone #: \_\_\_\_\_

Mailing Address: \_\_\_\_\_

Email address: \_\_\_\_\_ Fax # (if available): \_\_\_\_\_